

Court No. - 36

Case :- WRIT - C No. - 35749 of 2011

Petitioner :- Satya Narain Gupta

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Jitendra Prasad

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

On prayer made by Sri H.P. Dubey, learned counsel for the respondent Nos. 4 & 5, the case is directed to be put up as fresh before appropriate Bench on 14.7.2011 so as to enable him to obtain instructions in the matter.

Order Date :- 5.7.2011

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Court No. - 32

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Petitioner :- Satya Narain Gupta

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Jitendra Prasad

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Sunil Ambwani,J.

Hon'ble Pankaj Mithal,J.

Heard learned counsel for the parties.

The petitioner is challenging the correctness of the bills as well as the recovery certificate, which is alleged to have issued in respect of different connections. The petitioner purchased the property in the year 2003. It appears that the arrears of the previous owner are also sought to be recovered from the petitioner.

We find that the petitioner has alternative remedy of approaching the concerned Executive Engineer under para 6.4 of the U.P. Electricity Supply Code, 2005.

This writ petition is **disposed of** with directions that if the petitioner makes a statutory representation under Para 6.5 of the U.P. Electricity Supply Code, 2005, the same shall be decided by the Executive Engineer within a period of one month.

Order Date :- 14.7.2011

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